



CHAPTER xxxiv.

An Act to confer further powers on the South Lincolnshire Water Company. A.D. 1910.
[26th July 1910.]

WHEREAS the South Lincolnshire Water Company (in this Act called "the Company") were by the South Lincolnshire Water Act 1906 (in this Act called "the 1906 Act") incorporated with a capital of thirty thousand pounds divided into six thousand shares of five pounds each and with power to borrow sums not exceeding in the whole ten thousand pounds and to supply water within certain parts of the county of Lincoln and to exercise other powers in the said Act specified:

And whereas by the South Lincolnshire Water Act 1909 (in this Act called "the 1909 Act") further powers were conferred upon the Company:

And whereas part of the area which the Company are authorised to supply with water under those Acts is situate to the eastward and other part to the westward of the urban district of Holbeach and it is necessary that the mains of the Company should pass through a part of that district to give a supply to the eastward portion of the Company's area:

And whereas it is expedient that the town district of the parish of Holbeach should be included within the limits of supply of the Company:

And whereas by an agreement made the nineteenth June 1906 between the Bourne Waterworks Company Limited (in this Act called "the Bourne Company") and Alfred Robert Blanchett on behalf of the Company (which agreement was scheduled to and confirmed by the 1906 Act) provision was made for the purchase by the Company of the undertaking of the Bourne Company:

And whereas by section 38 (For protection of Bourne Council) of the 1906 Act certain obligations were imposed upon

A.D. 1910. the Company in the interests of the urban district of Bourne and by section 39 (For protection of Bourne Council and Bourne Waterworks Company) of the same Act it was provided that except so far as might be necessary for giving effect to the provisions of the said agreement with the Bourne Company the Company should not exercise any of the powers conferred upon them by that Act unless and until they had completed the purchase of the undertaking of the Bourne Company in accordance with the provisions of the said agreement.

And whereas the Bourne Company commenced an action against the Company in the Chancery Division of the High Court of Justice on the eleventh June 1907 and in the said action the Bourne Company claimed by way of alternative either specific performance of the said agreement made the nineteenth June 1906 or a declaration that a deposit of five hundred pounds paid to the Bourne Company under that agreement had been forfeited:

And whereas upon the trial of the said action (at which the Company did not appear) the Bourne Company obtained a declaration of forfeiture of the said deposit and not an order for specific performance of the said agreement:

And whereas it is expedient that the said agreement with the Bourne Company should be formally annulled and that the said sections 38 and 39 of the 1906 Act should be repealed:

And whereas in view of the extension of the Company's area of supply under this Act it is expedient that the amount of the Company's original capital and borrowing powers should be increased as in this Act provided:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short titles.

1. This Act may be cited for all purposes as the South Lincolnshire Water Act 1910 and the 1906 Act the 1909 Act and this Act may be cited together as the South Lincolnshire Water Acts 1906 to 1910.

Interpretation.

2. In this Act unless there be something in the subject or context repugnant to such construction—

“The Company” means the South Lincolnshire Water Company;

“The 1906 Act” and “the 1909 Act” mean the South Lincolnshire Water Acts 1906 and 1909 respectively; A.D. 1910.

“The Holbeach Council” means the urban district council of the urban district of Holbeach;

“The Bourne Company” means the Bourne Waterworks Company Limited.

3. The limits for the supply of water by the Company are hereby extended so as to include so much of the parish and urban district of Holbeach in the county of Lincoln as is known as the town district being the area edged with the colour red on the map signed in triplicate by the Right Honourable the Earl of Onslow the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy of which map is deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons and one copy at the office of the clerk to the Holbeach Council. Extension of limits.

4. The agreement dated the 19th day of June 1906 and made between the Bourne Company of the one part and Alfred Robert Blanchett on behalf of the Company of the other part and scheduled to the 1906 Act is hereby annulled. Rescission of Bourne agreement.

5. Sections 38 and 39 of the 1906 Act are hereby repealed and in lieu thereof the following provisions shall notwithstanding anything contained in the 1906 Act or this Act have effect for the protection of the Bourne Urban District Council (in this section called “the council”) (that is to say):— For protection of Bourne Urban District Council.

(1) The Company shall not sink any well boring shaft adit or other work within or within a distance of one mile from any part of the urban district of Bourne or take or use or distribute directly or indirectly any water from any well boring shaft adit or other work within the said area and the Company shall not without the consent in writing of the council apply for power to sink or take or use water from any such well boring shaft adit or other work:

(2) The Company shall not supply water for any purpose within any part of the urban district of Bourne.

6. If at any time after the expiration of two years from the passing of this Act the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance Power to local authority to supply water in case

A.D. 1910. with the provisions of the 1906 Act the 1909 Act and this Act
Company fails to supply. in that part of the parish and urban district of Holbeach known
as the town district the Holbeach Council may provide a supply
in such district in accordance with the provisions of the Public
Health Act 1875 and any company body or person may apply
for an Act of Parliament or Provisional Order for the purpose
of supplying water in any part of such district not sufficiently
supplied by the Company as if in either case this Act had not
passed. If any difference shall arise between the Company and
any such local authority company body or person as to the
sufficiency of the supply of water in any part of such area
such difference shall be settled by an arbitrator to be appointed
on the application of either party by the Board of Trade.

Increase of
capital.

7.—(1) The capital of the Company is hereby increased to
forty-two thousand pounds in eight thousand four hundred shares
of five pounds each and section 8 (Capital) of the 1906 Act shall
be read and construed accordingly.

(2) Section 10 (Power to borrow) of the 1906 Act is hereby
amended by substituting the words "fourteen thousand" in place
of the words "ten thousand" and the words "forty-two thousand"
in place of the words "thirty thousand."

For protec-
tion of
Holbeach
Council.

8. For the protection of the Holbeach Council (in this section
referred to as "the council") the following provisions shall unless
otherwise agreed between the council and the Company have effect
(that is to say):—

(1) In this section the expression "the town district"
means the portion of the parish and urban district
of Holbeach described in the section of this Act
whereof the marginal note is "Extension of limits":

(2) All mains conduits or lines of pipes laid by the Com-
pany in or along any main road or street within
the town district shall be laid by them in such posi-
tion in or at the side of such road or street and at
such depth below the surface as the council shall
reasonably direct and shall not without the consent
in writing of the council be constructed or laid upon
across or so as to interfere with the structural part
of any bridge or culvert but shall be carried over
or under the stream drain or watercourse crossed
by such bridge or culvert at the side thereof as the
council shall require:

- (3) The plans required by section 31 of the Waterworks A.D. 1910.
Clauses Act 1847 shall clearly indicate the position
manner and depth in and at which the mains con-
duits and lines of pipes are intended to be laid and
shall be delivered to the council by the Company
not less than thirty days before the Company commence
to break or open any road or street in the town district
for the purpose of laying the said mains conduits or
lines of pipes and all works done or to be done in
regard thereto shall be carried out in all respects so as
to satisfy the requirements of the Waterworks Clauses
Act 1847 and shall be completed with all reasonable
speed.
- (4) Nothing in this Act shall interfere with the right of the
council to alter the level of or deviate or improve in
any manner the council think fit any road bridge or
culvert within the town district in or along which any
main conduit or line of pipes of the Company have
been laid and the Company shall as soon as practicable
after receiving a notice in writing under the hand of
the clerk or surveyor of the council alter the position
of any such main conduit or line of pipes in the
manner and to the extent prescribed by such notice or
as in case of difference shall be determined by arbi-
tration in the manner herein-after provided and the
expenses of any such alteration shall be paid by the
Company to the council:
- (5) All works of laying mains conduits and lines of pipes
and of all necessary repairs thereto within the town
district shall be so executed by the Company as not
to stop the traffic and so far as reasonably practicable
as not to impede or interfere in any way with the
traffic on any road or street or bridge and during
the laying of the mains every precaution shall be
taken to avoid danger or injury to persons or cattle
or stock using the road or bridge and in particular
the Company will cause danger lights to be placed
at night at the end and by the side of the trenches
which may be dug and temporarily left open on or
across any road so that all such lights are lit and
kept burning from one hour after sunset to one hour
before sunrise whilst the said trenches remain open

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so as to effectually warn the traffic passing on the said road and a watchman shall also be employed by the Company to warn passengers on the road when necessary during the night:

- (6) The council shall not be liable for or in respect of any damage or injury done to any main conduit or line of pipes of the Company in or under the metalled portion of any road street or bridge arising from the ordinary use by the council of a steam or other roller not exceeding twelve tons in weight or from the passage of traction engines or other ordinary traffic over such road or bridge:
- (7) The Company shall to the satisfaction of the council make good and thereafter for the space of twelve calendar months keep in repair the portion of all roads broken up by the Company in the exercise of any of the powers by this Act authorised and particularly where the main conduit or line of pipes is laid under the metalled portion of any main road or street the soil shall be rammed over the pipes when laid in six-inch layers with an iron-headed rammer and large slag nine inches in depth shall be hand placed on the soil then four and a half inches of two and a quarter inches broken slag and finished with the best of the old metal and such quantity of one and three-quarter inch granite as may be necessary and the surface shall be rolled and consolidated with a heavy roller and levelled to the rest of the roadway:
- (8) The Company shall when laying the said mains conduits and lines of pipes within the town district put down to the satisfaction of and in positions directed by the council's surveyor and thereafter maintain to the like satisfaction suitable and proper fire hydrants and allow the council or any fire brigade or other persons or person authorised by them to take from the said mains or lines of pipes through the said hydrants such supply of water for fire-extinguishing purposes as they may require from time to time free of all costs charges or expenses:
- (9) The Company shall defray the expense of tapping the main and laying the first hundred services (not exceeding thirty feet each in length) in the order in

which applications are received and reinstate all roads of the council broken up in so doing as provided by subsection (8) of this section : A.D. 1910.

- (10) If any dispute difference or question shall arise between the Company and the council as to the construction meaning or effect of this section or anything in this section contained or the respective rights or liabilities of the council and the Company respectively under this section the same shall be referred to the arbitration of a sole arbitrator being an engineer to be appointed (failing agreement) by the President of the Institution of Civil Engineers on the application of either party or failing him by the High Court of Justice and subject thereto the provisions of the Arbitration Act 1889 shall apply to such arbitration.

9. The provisions contained in section 24 of the 1909 Act for the protection of the Great Northern and Great Eastern Joint Committee are incorporated with this Act and shall extend and apply to the works hereafter to be constructed and maintained by the Company in the extended limits of supply as if such section had been re-enacted in this Act. For protection of Great Northern and Great Eastern Joint Committee.

10. The provisions of section 36 of the 1906 Act for the protection of the Midland and Great Northern Railways Joint Committee (therein referred to as "the committee") so far as the same are applicable shall apply to works hereafter to be constructed and maintained by the Company affecting the railway works lands or property of the committee in the extended limits of supply by this Act authorised in the parish and urban district of Holbeach. For protection of Midland and Great Northern Railways Joint Committee.

11. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

12. The costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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